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General Comment

Human flourishing and economic competitiveness are best served by protecting, defending and strengthening Americans' rights to the value of their original creations, as directed by the U.S. Constitution, Article 1, Section 8, which grants Congress the power "to promote the Progress of Science and useful Arts, by securing for limited Times to Authors and Inventors the exclusive Right to their respective Writings and Discoveries." The licensing of creative output for the training of generative "artificial intelligence" is and ought to be reserved to the creators of that work, and for another party to use that output for such purpose without licensing the right to do so from the creators is a form of intellectual property theft.

The arguments of companies developing "AI" systems acknowledge the value of authors' and artists' work when they say they can't train their systems without it, yet they deny the value of that same work when asked to remunerate those authors and artists who created it. If the government considers leadership in the development of "AI" systems to be a public good, then to officially sanction the past, present and future development of these systems without any payment given to the authors and artists on whose work the systems are trained is a taking of private (intellectual) property for public use without just compensation, and thus a violation of the Fifth Amendment. Under no circumstances should this be allowed.